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Provision of January 16, 2025  
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## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by  
Prof. Pasquale Stanzione, President, Prof.  
Ginevra Cerrina Feroni, Vice President, Dr.  
Agostino Ghiglia and Attorney Guido Scorza, members, and  
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data (Legislative Decree No. 196 of June 30, 2003), as amended by Legislative Decree No. 101 of August 10, 2018, containing provisions for the adaptation of the national legislation to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000, adopted by resolution of June 28, 2000;

REPORTING Dr. Agostino Ghiglia;

### 1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

#### 1.1. Premise

With communication prot. No. 67866/344847 of June 4, 2024 (notified on the same date via certified electronic mail), which must be understood as fully referenced here, the Office initiated, pursuant to Article 166, paragraph 5, of the Code, a procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation against Zena s.r.l.s., represented by the legal representative pro tempore, with registered office in Bergamo, via Zanica No. 85, tax code 04617730165.

The procedure originated from an investigation initiated by the Authority, following the receipt of a complaint in which Mr. XX stated that he had been added to a WhatsApp group called "Zena Padel," administered by Zena s.r.l.s. (hereinafter also "Zena" or "Company"), which had 47 members with their respective mobile numbers visible to all. Mr. XX contacted the administering Company of the group asking for the reasons for the inclusion of his number among those contactable in the chat, receiving as a response the assertion that "in his case, by purchasing on Amazon, he expressed broad consent" and that the inclusion in the group was aimed at "offering you the opportunity to benefit from discounts." In the complaint, Mr. XX highlighted that other group members had also expressed their opposition to the promotional initiative.

#### 1.2. The request for information made by the Authority

The Office, having examined the circumstances reported in the complaint and the attached documentation, sent a request for information to Zena pursuant to Article 157 of the Code, to acquire elements "with particular reference to the nature and origin of the personal data processed for the inclusion of the complainant's name in the indicated chat, the legal basis for the data processing carried out, and the methods by which the prescribed information was provided." In response to the Guarantor's request, the Company replied in due time, on May 13, 2024, "to fully contest the complaint File No. 344847 as Mr. XX claims to have never had dealings with our company, which is not true as we wish to highlight and bring to Mr. XX's attention that within the Amazon platform, the majority of products are sold by third-party companies. This situation is precisely and accurately highlighted by Amazon both at the time of payment and on the product page itself. That said, we wish to indicate that

the lack of memory does not recall does not know highlights how Mr. XX did not pay the correct attention when purchasing a complete set for Padel from our Company. Regarding the mentioned chat, it was used to provide better service for any issues encountered during the purchase and to provide better support to customers as requested by the Amazon platform, which asks the customer for their phone number precisely to provide better assistance in case of problems. The chat in question also served to give customers the opportunity to benefit from such services, in addition to obviously offering opportunities to customers. Explained above, the customer who did not wish to be included could autonomously remove themselves from it. Hoping to have responded, we would like to highlight that opening a complaint for situations like this seems excessive and an extreme waste of time for everyone; it would have been appropriate to discuss between customer and supplier.”

### 1.3. Contestation of violations

The Office, at the conclusion of the investigation, adopted the aforementioned act of contestation No. 67866/344847 of June 4, 2024, in which, first of all, it observed that the group chat established by Zena s.r.l.s had evidently promotional purposes since the messages published by the Company within it were as follows: “Good morning!!! We are writing to you from Zena Padel; there are many discounts active on our site!!! [www.zenapadel.com](http://www.zenapadel.com)”; “Good morning, on the site [www.zenapadel.com](http://www.zenapadel.com) there are all the sales that obviously are not on Amazon.”

By virtue of the nature of the chat, as a tool for conveying promotional messages through the use of electronic means, it was noted that the Company had not provided the individuals...

of the purchase, without having obtained the necessary consent as required by the applicable regulations.

In light of the above, it is evident that Zena s.r.l.s. has engaged in the processing of personal data for promotional purposes without providing the required information and obtaining the necessary consent from the individuals whose phone numbers were included in the "Zena Padel" group chat.

The conduct described is also suitable to constitute a violation of the principles of lawfulness and transparency as per Article 5, paragraph 1, letter a) of the Regulation.

Based on the observations made, the Authority contested the following alleged violations against Zena:

- a) Article 5, paragraph 1, letter a), 6 and 7 of the Regulation and Article 130, paragraphs 1 and 2 of the Code, for having processed the personal data of the complainant and 45 other clients without the required consent;
- b) Article 5, paragraph 1, letter a) and 13 of the Regulation, for having failed to provide the necessary information to the data subjects as required therein.

## 2. EXERCISE OF THE RIGHT TO DEFENSE BY THE DATA CONTROLLER

The Company, exercising its right to defense, submitted a defensive memorandum to the Authority on June 11, 2024, and simultaneously requested a hearing before the Guarantor.

In the defensive memorandum, Zena first represented that it is a small business active in the trade of products for the game of padel, primarily through e-commerce platforms.

Regarding the allegations made, the Company reiterated that the complainant's name was included in the "Zena Padel" WhatsApp group following a purchase made through the Amazon platform. Zena specified that "Amazon requires the insertion of the phone number to facilitate communication between seller and customer. The group chat was used to provide post-sale support and discount opportunities."

The Company then insisted on stating, with reference to the legal basis for the processing, that "during the purchasing process, the customer consents to receive communications related to the purchased products. The consent, although broad, was nonetheless aimed at enhancing the customer experience by offering direct support and promotions. However, we recognize that it may have been perceived differently by Mr. XX and other group members."

Regarding the information provided, Zena stated, "We acknowledge that the information provided to

the data subjects was not sufficiently detailed regarding the use of the WhatsApp group for promotional purposes. Following this report, we are proceeding with a complete review of our information notices to ensure full transparency and compliance with Article 13 of Regulation (EU) 2016/679."

Finally, the Company, in order to help resolve the issues that emerged, committed to "implement a more specific and unequivocal consent collection system for all promotional communications; provide detailed information to users before including them in any communication group; offer immediate opt-out options to members already included in communication groups."

For completeness, it should be noted that the Company, duly summoned as requested, failed to appear for the hearing on November 14, 2024, and did not provide any explanation in this regard.

### 3. EVALUATIONS OF THE AUTHORITY

The arguments put forth by Zena are not sufficient to exclude its responsibility regarding the contested violations.

From the documents and the statements made by the Company, it is fully confirmed that Zena has used the data of the complainant and 45 other clients to create a group chat via the WhatsApp messaging service, through which promotional messages related to offers, discounts, and purchasing opportunities better illustrated on its website were conveyed.

At least with respect to the complainant's data (but it is reasonable to believe that this also occurred for other clients, as demonstrated by the contents of the chat presented by Mr. XX), it has emerged that the Company acquired his personal data from the sharing carried out by Amazon to facilitate the completion of the purchase, without having obtained the necessary consent as required by the applicable regulations.

**\*\*of a purchase order made on its own e-commerce platform.\*\***

In this regard, it is appropriate to represent that Amazon, in its information notice, specifies to its customers that "when you purchase products from third-party sellers on our store, the seller will receive your name and delivery address in order to process and fulfill the order." Regarding the possible sharing of data for marketing purposes by third parties, it should be emphasized that Amazon's notice refers to some limited cases which, however, never include the possibility of using the customer's telephone number data.

It thus emerges that, in the case at hand, Zena has processed personal data of the complainant, acquired during a sale of sports equipment through the Amazon platform, outside the provisions of the relationship between the complainant and the platform, thus acting as an independent data controller.

Given the promotional purpose, since the messages conveyed by the chat in question concerned further purchasing opportunities for the Company's products available by consulting its website, the processing of the complainant's data and that of other customers in the same condition (who had therefore completed a purchase through Amazon) could only occur following the acquisition by Zena of specific consent from the data subjects as per Articles 6 and 7 of the Regulation and Article 130, paragraphs 1 and 2, of the Code, consent that Zena failed to obtain.

In the case at hand, the defensive arguments regarding an alleged "lack of perception" of the nature of consent by the data subject do not appear relevant, as it must be reiterated that such consent was never obtained by the data controller Zena s.r.l.s. Equally irrelevant appear the observations regarding the use of the complainant's personal data for any form of "post-sale assistance," as it is evident that such a service cannot be conveyed through a group chat but exclusively through one-to-one communications suitable to protect the confidentiality of the individual customer.

Regarding the complaint concerning the lack of information, it should be clarified that, within the context of an Amazon purchase, the only notice that the customer has the opportunity to read is that of Amazon itself, which is not provided on behalf of the sellers displaying their products on the platform. Therefore, it is unclear what Zena refers to when it states that "the information provided to the data

subjects was not sufficiently detailed regarding the use of the WhatsApp group for promotional purposes,” given that the information present on the Company's website may not have been known to Amazon customers (and in any case, to date, such information conditions the sending of promotional messages on the acquisition of suitable consent and does not refer to the possibility of creating group chats).

With regard to the creation of a group chat on WhatsApp, it should be noted that, although this phenomenon is quite widespread among users of the messaging service, it cannot be considered legitimate when not intended for the “exercise of activities of an exclusively personal or domestic nature” among individuals (Article 2, paragraph 2, letter c), of the Regulation) or when not expressly authorized by the users.

It is true that WhatsApp has provided a specific functionality to allow each user to opt-out of being included in group chats (a functionality that it is advisable to use, especially concerning users not included in one's contact list); however, if this option is not exercised, this cannot be interpreted, particularly by legal entities, as consent to the processing aimed precisely at inclusion in the aforementioned group chats, processing which is inherently particularly invasive as it is capable of sharing the data related to the telephone numbers of all included parties. Therefore, from this perspective as well, the processing carried out by Zena is found to be unlawful due to the lack of information and consent.

Finally, regarding the intentions expressed by the Company in its defensive memorandum to remedy the issues raised in the notice of contestation, it should be observed that these have not, to date, been effectively implemented and, moreover, such intentions do not appear suitable to restore the legality of the processing, which must necessarily involve the release of a prior detailed notice and the acquisition of specific and unequivocal consent, thus excluding any solution based on the so-called “opt-out.”

It must therefore be confirmed that Zena is responsible for the violations contested in points a) and b).

#### **\*\*4. CONCLUSIONS\*\***

Based on the above, Zena's responsibility for the following violations is deemed established:

- a) Article 5, paragraph 1, letter a), 6 and 7 of the Regulation and Article 130, paragraphs 1 and 2 of the Code, for having processed the personal data of the complainant and 45 other customers without the required consent;
- b) Article 5, paragraph 1, letter a) and 13 of the Regulation, for having failed to provide the data subjects with the necessary prior information as required therein.

Having also established the unlawfulness of the processing examined, it is necessary to:

- impose on Zena, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing of the complainant's data and that of the... other clients included in the WhatsApp group chat "Zena Padel";
- to adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Zena of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation.

#### **5. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION**

The violations indicated above necessitate the adoption of an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Zena of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation (payment of an amount up to € 20,000,000.00 or, for companies, up to 4% of the worldwide annual turnover of the previous financial year, if higher);

For the determination of the maximum penalty provided for, it is therefore necessary to refer to Zena's turnover, as derived from the economic and tax information acquired, and thus this maximum penalty is determined, in the case in question, in euros € 20,000,000.00.

For the determination of the amount of the sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation.

In the case at hand, the following are relevant:

- 1) the severity of the violations (Article 83, paragraph 2, letter a) of the Regulation), taking into account the subject and purposes of the treatments, attributable to marketing activities carried out through invasive means, suitable not only to convey unwanted promotional messages but also to determine the communication of the telephone numbers included in the group chat to other subjects;
- 2) as a mitigating factor, the number of subjects affected by the violations (Article 83, paragraph 2, letter a) of the Regulation) since, at present, the unlawful conduct has been reported only by the complainant and involves a total of 46 interested parties;
- 3) as an aggravating factor, the significantly negligent nature of the Company's conduct (Article 83, paragraph 2, letter b) of the Regulation), which has set up a communication system with its clients that is entirely inadequate to ensure their confidentiality;
- 4) as an aggravating factor, the categories of data processed (Article 83, paragraph 2, letter g) of the Regulation), since it has emerged that such data pertained to the mobile phone numbers of clients, which are subject to a particular confidentiality regime;
- 5) as a mitigating factor, the circumstance that the Company has not previously been the recipient of a corrective and sanctioning measure from the Authority (Article 83, paragraph 2, letter e) of the Regulation).

Based on the overall elements indicated above, and the principles of effectiveness, proportionality, and deterrence provided for by Article 83, paragraph 1, of the Regulation, and taking into account the necessary balancing between the rights of the interested parties and the freedom of enterprise, also in order to limit the economic impact of the sanction on the organizational and functional needs of the Company, it is deemed that an administrative sanction of payment of an amount of € 10,000.00 (ten thousand/00), equal to 0.05% of the maximum penalty, should be applied to Zena.

In the case in question, it is also deemed that the accessory sanction of publication on the Authority's website of this injunction order should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Authority's Regulation No. 1/2019, taking into account the particular severity of the violations and the disvalue of the conduct, with reference to the evasion of provisions regarding marketing through electronic means, as well as for the involvement of additional subjects other than the complainant.

Finally, the prerequisites of Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, are met.

**ALL OF THE ABOVE CONSIDERED, THE AUTHORITY**

- a) imposes on Zena, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing of the data of the complainant and the other clients included in the WhatsApp group chat "Zena Padel";
- b) orders Zena, pursuant to Article 157 of the Code, to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the imposed measure; any failure to comply with the provisions in this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

**ORDERS**

Zena s.r.l.s., represented by the legal representative pro tempore, with registered office in Bergamo, via Zanica No. 85, tax code 04617730165, to pay the sum of € 10,000.00 (ten thousand/00) as an administrative pecuniary sanction for the violations indicated in the reasoning, stating that the offender, pursuant to Article 166, paragraph 8, of the Code has the right to settle the dispute, by complying with the prescribed measures and paying, within thirty days, an amount equal to half of the imposed sanction.

**ORDERS**

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph

8, of the Code, to pay the sum of € 10,000.00 (ten thousand/00), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of the Law No. 689/1981.

#### ORDERS

a) the publication of this provision, pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, as well as the application of the accessory sanction of publication on the website of the Authority of this injunction order, as provided for by Articles 166, paragraph 7 of the Code and 16 of the Authority's Regulation No. 1/2019;

b) the annotation of this provision in the internal register of the Authority - as provided for by Article 57, paragraph 1, letter u), of the Regulation, as well as by Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority - related to the violations and the measures adopted in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, of Legislative Decree of September 1, 2011, No. 150, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the interested party, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, January 16, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei